

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christian Jett	Team: Squad #11	CCRB Case #: 202402266	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 03/05/2024 11:09 PM	Location of Incident: East 198th Street and Bainbridge Avenue	18 Mo. SOL 9/5/2025	Precinct: 52
Date/Time CV Reported Wed, 03/06/2024 10:42 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/06/2024 10:42 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Satinderpal Singh	00357	955500	052 PCT
2. PO Matthew Guerrero	03121	965737	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Christopher Oconnor	05872	961018	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Satinderpal Singh	Force: Sergeant Satinderpal Singh used physical force against § 87(2)(b)	A . Unfounded
B . SGT Satinderpal Singh	Abuse: Sergeant Satinderpal Singh questioned § 87(2)(b)	B . Substantiated
C . SGT Satinderpal Singh	Abuse: Sergeant Satinderpal Singh frisked § 87(2)(b)	C . Substantiated
D . PO Matthew Guerrero	Abuse: Police Officer Matthew Guerrero searched the vehicle in which § 87(2)(b) was an occupant.	D . Substantiated
E . SGT Satinderpal Singh	Abuse: Sergeant Satinderpal Singh failed to provide § 87(2)(b) with a business card.	E . Unfounded
F . PO Matthew Guerrero	Abuse: Police Officer Matthew Guerrero failed to provide § 87(2)(b) with a business card.	F . Substantiated

Case Summary

On March 6, 2024, § 87(2)(b) filed this complaint with the CCRB over the phone.

On March 5, 2024, at approximately 11:09 p.m., § 87(2)(b) was parked in a bus lane on East 198th Street and Bainbridge Avenue in the Bronx. Sgt. Satinderpal Singh, PO Matthew Guerrero, and PO Christopher O'Connor of the 52nd Precinct approached § 87(2)(b) vehicle. Sgt. Singh allegedly pulled § 87(2)(b) out from the vehicle (**Allegation A: Force, Unfounded**). Sgt. Singh questioned § 87(2)(b) about whether he had anything sharp on his person, or whether he was armed with any weapons (**Allegation B: Abuse of Authority, Substantiated**). Sgt. Singh frisked § 87(2)(b) pockets and waist area (**Allegation C: Abuse of Authority, Substantiated**). PO Guerrero retrieved Sgt. Singh's department phone, which incidentally was dropped into § 87(2)(b) vehicle and then searched the driver's seat area of the vehicle by reaching his arm inside (**Allegation D: Abuse of Authority, Substantiated**). After § 87(2)(b) was warned and admonished about the parking violation, he was allowed to leave without being offered a business card by either Sgt. Singh or PO Guerrero (**Allegation E: Abuse of Authority, Unfounded**) (**Allegation F: Abuse of Authority, Substantiated**).

The investigation received body-worn camera (BWC) footage from Sgt. Singh, PO Guerrero, and PO O'Connor [**Board Review 01: Videos; Board Review 02: Summaries**].

§ 87(2)(b) provided cellphone camera video footage of the incident [**Board Review 03: Video; Board Review 04: Summary**].

§ 87(2)(b) was not arrested or issued summonses during the incident.

Findings and Recommendations

Allegation (A) Force: Sergeant Satinderpal Singh used physical force against § 87(2)(b)

Sgt. Singh's BWC [**Board Review 05: Video from durational timestamp 2:45 – 2:55; Board Review 06: Summary**] depicts § 87(2)(b) being asked to exit the vehicle and Sgt. Singh opening § 87(2)(b) door. § 87(2)(b) then stepped out from the vehicle without any assistance or physical intervention.

§ 87(2)(b) stated that he was asked to exit his vehicle by Sgt. Singh. § 87(2)(b) questioned Sgt. Singh and asked why he needed to exit when Sgt. Singh opened the driver's side door and took § 87(2)(b) out of the vehicle by grabbing him by his sweater and pulling him out [**Board Review 07**].

Sgt. Singh stated § 87(2)(b) exited the vehicle on his own and denied pulling him out [**Board Review 08**].

§ 87(2)(g) BWC is comprehensive, showing that Sgt. Singh did not pull him out of the vehicle and that § 87(2)(b) exited the vehicle of his own, it is recommended that **Allegation A** be closed as **Unfounded**.

Allegation (B) Abuse of Authority: Sergeant Satinderpal Singh questioned § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Satinderpal Singh frisked § 87(2)(b)

Allegation B was not specifically alleged in a verified statement but observed upon review of BWC footage.

Sgt. Singh's BWC [**Board Review 05: Video from durational timestamp 0:59 – 3:25; Board Review 06: Summary**] depicts Sgt. Singh telling § 87(2)(b) that he is parked at a bus stop and that he smells the odor of marijuana. § 87(2)(b) asks PO Singh what he meant by that and denies smoking weed. At durational timestamp 2:05, § 87(2)(b) says "I'm not smoking on nothing man." Sgt. Singh says, "I just smell the marijuana, that's why I'm asking you. Were you smoking earlier?" § 87(2)(b) responds, "Probably. Four-Five hours ago. I'm just trying to pick up my son." PO Guerrero asks, "This is the one burnt cigarette there? That's all you got?" § 87(2)(b) confirms. At 2:45, § 87(2)(b) is asked by Sgt. Singh to step out of the vehicle. As § 87(2)(b) steps out of the vehicle, Sgt. Singh asks him, "Nothing sharp on you while I'm talking to you right?" § 87(2)(b) immediately reaches for his left coat pocket and pulls his cellphone out. At 2:50, Sgt. Singh reaches

for § 87(2)(b) left jacket pocket and flattens it, running his right hand over the pocket. At 3:05, Sgt. Singh asks § 87(2)(b) "... just keep your hands up. Do you have any weapons on you?"

PO Guerrido's BWC [Board Review 09: Video from durational timestamp 02:54 – 3:16; Board Review 10: Summary] depicts Sgt. Singh placing his hand over § 87(2)(b) left pocket of his jacket, then proceeding to grab the pocket and pull it towards him.

PO O'Connor's BWC [Board Review 11: Video from durational timestamp 3:08 – 5:06; Board Review 12: Summary] at durational timestamp 3:40, depicts § 87(2)(b) standing with his back against the rear of the vehicle, has arms outward away from any pockets of his. Sgt. Singh speaking with him, standing in front of and facing § 87(2)(b). PO Guerrido asks § 87(2)(b) how much marijuana is in the vehicle and § 87(2)(b) moves, turning his shoulders to PO Guerrido and backing away from the vehicle. Sgt. Singh grabs § 87(2)(b) coat by his waist and places him back against the vehicle. There are no other physical interactions between officers and § 87(2)(b) at the rear of the vehicle.

§ 87(2)(b) stated that while he was standing at the rear of his vehicle, his pockets and waist area were patted by Sgt. Singh. Sgt. Singh asked § 87(2)(b) if there was anything in the vehicle, they should be worried about to which § 87(2)(b) responded "no" [Board Review 07].

Sgt. Singh stated that after having § 87(2)(b) exit the vehicle, Sgt. Singh had § 87(2)(b) raise his hands to ensure he would not reach for anything. § 87(2)(b) dropped his hands multiple times and Sgt. Singh told § 87(2)(b) to keep his hands up where he could see them. Sgt. Singh had his hands out in front of him to make sure § 87(2)(b) kept his hands up. After showing Sgt. Singh's BWC footage, he explained that he held his hands out to make sure § 87(2)(b) kept his hands up and that he could have accidentally touched § 87(2)(b) clothes but did not intend to frisk him [Board Review 08]. Sgt. Singh in a re-interview stated that § 87(2)(b) demeanor and inconsistent statements led him to ask whether § 87(2)(b) had anything sharp on him or whether he had any weapons on his person. Sgt. Singh did not recall what, if any, suspicion he had that § 87(2)(b) was armed, apart from § 87(2)(b) inconsistent statements about whether he had smoked marijuana and the about duration of time he had been at the location. § 87(2)(b) initially denied having smoked marijuana then admitted to having smoked marijuana hours prior to the interaction [Board Review 13].

In People v. Garcia, 20 N.Y.3d 317, the Court of Appeals found that officers could not, without founded suspicion for the inquiry, ask the occupants of a vehicle if they possessed any weapons [Board Review 14].

In Arizona v. Johnson, 555 U.S. 323, the Supreme Court of the United States held that to justify a pat down of the driver or a passenger during a traffic stop, the police must harbor reasonable suspicion that the person subjected to the frisk is armed and dangerous [Board Review 15].

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be **Substantiated**.

§ 87(2)(g)

BWC footage shows that Sgt. Singh frisk of § 87(2)(b) was deliberate § 87(2)(g)

Therefore, it is recommended that **Allegation C** be **Substantiated**.

Allegation (D) Abuse of Authority: Police Officer Matthew Guerriido searched the vehicle in which § 87(2)(b) was an occupant.

Sgt. Singh's BWC [Board Review 05: Video from durational timestamp 0:59 – 3:00; Board Review 06: Summary] depicts Sgt. Singh telling § 87(2)(b) that he is parked at a bus stop and that he smells the odor of marijuana. § 87(2)(b) asks PO Singh what he meant by that and denies smoking weed. At durational timestamp 2:05, § 87(2)(b) says "I'm not smoking on nothing man." Sgt. Singh says, "I just smell the marijuana, that's why I'm asking you. Were you smoking earlier?" § 87(2)(b) responds, "Probably. Four-Five hours ago. I'm just trying to pick up my son." PO Guerriido asks, "This is the one burnt cigarette there? That's all you got?" § 87(2)(b) confirms. At 2:45, § 87(2)(b) is asked by Sgt. Singh to step out of the vehicle. As § 87(2)(b) steps out of the vehicle, Sgt. Singh tosses his department phone, which was in his right hand, onto the driver's seat of the vehicle.

PO Guerriido's BWC [Board Review 09: Video from durational timestamp 4:38 – 5:15; Board Review 10: Summary] depicts PO Guerriido asking in general, "Rental agreement, where is that?", to which Sgt. Singh responded, "It was on his phone." Sgt. Singh is pointing his finger at § 87(2)(b) vehicle as he says this. PO Guerriido confirms with § 87(2)(b) that there is no paper copy of the document. PO Guerriido proceeds to shine his flashlight into § 87(2)(b) vehicle from the driver's seat. The front driver's side door is completely open and the stickers with the vehicle information are conspicuously placed on the frame of the car. At durational timestamp 4:55, Sgt. Singh's department phone, which had previously been dropped into the driver's seat of § 87(2)(b) vehicle, was still there and visible in the driver's seat. At 4:57, PO Guerriido has his own department phone in his hand. At 5:03 PO Guerriido breaches the plane, entering the vehicle with his arm. At 5:06, Sgt. Singh's department phone is visible in PO Guerriido's hand as he retrieved it from § 87(2)(b) vehicle. At 5:09, PO Guerriido breaks the plane once again and enters the vehicle with his arm and flashlight. PO Guerriido breaches the plane of the vehicle, inspecting the driver's seat area, for a total of nine seconds.

§ 87(2)(b) stated that no officer asked for permission to search his car, nor was permission to search given by § 87(2)(b) was not facing his vehicle but was sure that PO Guerriido searched it [Board Review 07].

PO Guerriido stated that he did not recall entering § 87(2)(b) vehicle. Sgt. Singh exited the vehicle first, approached § 87(2)(b) vehicle from the drivers' side and commented that there was a strong odor of marijuana emanating from the vehicle. Upon approaching the vehicle from the front passenger's side, PO Guerriido observed a burnt marijuana cigarette sitting in the center console of the vehicle. PO Guerriido does not recall what the marijuana cigarette looked like or what it was wrapped in but from his experience being around seeing marijuana cigarettes, was able to determine that it was marijuana. When presented with his BWC footage, PO Guerriido recognized that he retrieved Sgt. Singh's cellphone from the vehicle which was not investigatory. PO Guerriido broke the threshold with his arms and entered the vehicle to look for the vehicle's VIN number and for documents like the car rental agreement. He was unsure what Sgt. Singh and § 87(2)(b) told him regarding the documents being digital [Board Review 16].

Sgt. Singh stated that he smelled a strong odor of marijuana emanating from the vehicle and told § 87(2)(b) to exit the vehicle so that he could make sure he was not under the influence of marijuana [Board Review 08].

In *People v. Torres*, 74 N.Y.2d 224, the court ruled that a police officer's entry into a citizen's automobile and the police officer's inspection of personal effects located within must be both justified in its inception and reasonably related in scope and intensity to the circumstances which rendered its initiation permissible [Board Review 17].

In *People v. Hernandez*, 238 A.D.2d 131, an officer breaching the plane of the car doorway with his body or arm to reach inside the vehicle constitutes a search of a vehicle. There must be probable cause that a vehicle contains contraband, weapons, or evidence of a crime to justify a

warrantless search of a vehicle [Board Review 18].

New York State Vehicle & Traffic Law § 1227(1) makes the consumption of alcoholic beverages or cannabis or possession of an open container containing an alcoholic beverage in a motor vehicle located on public roads, prohibited. An operator or passenger in violation of this section shall be guilty of a traffic infraction [**Board Review 19**].

New York State Vehicle & Traffic Law § 1192(4) prohibits the operation of a motor vehicle while the person's ability to operate such a motor vehicle is impaired by the use of a drug [Board Review 20].

New York State Penal Law § 222.05 maintains that **3.** no finding or determination of reasonable cause to believe a crime has been committed shall be based solely on evidence of the following facts and circumstances, either individually or in combination with each other (a) the odor of cannabis; (b) the odor of burnt cannabis **4.** Paragraph (b) of subdivision three of this section shall not apply when a law enforcement officer is investigating whether a person is operating a motor vehicle, vessel or snowmobile while impaired by drugs or the combined influence of drugs or of alcohol and any drug. During such investigations, the odor of burnt cannabis shall not provide probable cause to search any area of a vehicle that is not readily accessible to the driver and reasonably likely to contain evidence relevant to the driver's condition [**Board Review 21**].

NYPD Finest Message 39319402, in accordance with the Marihuana Regulation and Taxation Act, 2021 N.Y. SB 854, provides officers with guidelines regarding when searches of vehicles related to marihuana enforcement: the smell of marihuana alone no longer establishes probable cause of a crime to search a vehicle. This change applies to both burnt and unburnt marihuana. Searches of vehicles related to marihuana enforcement may only be conducted in accordance with the following: Driving while impaired by drugs New York State Vehicle & Traffic Law § 1192(4): If the driver appears to be under the influence of marihuana and there is probable cause to believe that the vehicle contains evidence of the impairing marihuana (e.g. smell of burnt marihuana or admission of having smoked recently), a search of the passenger compartment of the vehicle is permissible. However, the trunk may not be searched unless the officer develops separate probable cause to believe the trunk contains evidence of a crime (e.g. gun recovered from under driver seat) or officers may request consent to search the trunk in compliance with the right to know law under NYPD Patrol Guide Procedure 212-11. If voluntary consent is given, officers may search the areas of the vehicle covered by the consent. Smoking/consuming marihuana while operating a vehicle New York State Vehicle & Traffic Law § 1227(1): If a driver exhibits no signs of impairment but is observed smoking/consuming marihuana while operating a vehicle, or admits to smoking/consuming marihuana while driving, or there is a smell of burnt marihuana in the vehicle that is attributable to the driver, enforcement can be taken for New York State Vehicle & Traffic Law § 1227(1). This traffic infraction alone cannot be the basis of a search of the vehicle. If an officer develops Level II founded suspicion of criminality during any vehicle traffic violation stop, the MOS may ask for consent to search in compliance with NYPD Patrol Guide Procedure 212-11 [Board Review 22].

BWC footage shows § 87(2)(b) initially denying he had smoked any marijuana. He then admits to “probably” having smoked four to five hours prior. BWC footage depicts PO Guerrero breaching the plane of the car doorway § 87(2)(g)

As per NYPD Finest Message 39319402, pursuant to investigations into impaired drivers, enforcement may be taken if the smell of burnt marihuana is attributable to the driver, and if the vehicle contains evidence of the impairment of marihuana, a search of the passenger cabin of the vehicle is permitted. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
PO Guerrido broke this threshold twice pursuant to looking for documents and vehicle information despite being told by Sgt. Singh and § 87(2)(b) that they were digital. § 87(2)(g)
Therefore, it is recommended that **Allegation D** be closed as **Substantiated**.

Allegation (E) Abuse of Authority: Sergeant Satinderpal Singh failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: Police Officer Matthew Guerrido failed to provide § 87(2)(b) with a business card.

Sgt. Singh's BWC [Board Review 05: Video from durational timestamp 5:43; Board Review 06: Summary] depicts PO O'Connor asking § 87(2)(b) whether he has any questions and Sgt. Singh asks, "You need a business card?" § 87(2)(b) cellphone begins to ring which is connected to the vehicle's speakers.

PO Guerrido's BWC [Board Review 09: Video from durational timestamp 5:40; Board Review 10: Summary] depicts PO Guerrido standing at the rear of § 87(2)(b) vehicle as the stop concludes. He does not offer a business card to § 87(2)(b) and returns to the police vehicle.

§ 87(2)(b) stated that frisking § 87(2)(b) and searching his vehicle, Sgt. Singh, PO Guerrido and PO O'Connor all returned to their vehicle and left the area. § 87(2)(b) did not receive a business card from any officer, nor was he issued a summons [Board Review 07].

Sgt. Singh's statement was consistent with his BWC footage which shows him asking if § 87(2)(b) needed a business card before departing [Board Review 08].

PO Guerrido stated that he observed Sgt. Singh offer § 87(2)(b) a business card as he was the main contact with § 87(2)(b) and both parties went their separate ways. PO Guerrido was never asked for his business card [Board Review 16].

NYPD Administrative Guide Procedure 304-11 mandates members of the service to offer their business card, as appropriate, to members of the public upon conclusion of certain law enforcement activities when no summons is issued, or an arrest is made. The law enforcement activities include but are not limited to: Level III encounters, frisks, and search of vehicles. [Board Review 23].

New York City Administrative Code § 14-174 requires an officer to offer a business card to persons at the conclusion of any such activity that does not result in an arrest or summons, including frisks, searches of persons or property, and home searches. Officers must offer a business card upon conclusion of law enforcement activities when no summons is issued, or an arrest is made [Board Review 24].

As observed on BWC footage, as the point of contact, Sgt. Singh offered his business card to § 87(2)(b) at the conclusion of the stop. § 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Unfounded**.

As previously established, BWC footage captured PO Guerrido's search of § 87(2)(b) vehicle. § 87(2)(g)

PO Guerrido's BWC does not capture him offering a business card to § 87(2)(b) § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that
Allegation F be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Guerrido has been a member of the service for six years and has been a subject in six additional CCRB complaints and 15 allegations, of which five were substantiated:
 - 202308215 involved substantiated allegations of Abuse of Authority (failure to provide RTKA card, frisk, improper use of BWC, question, stop) against PO Guerrido. The Board recommended charges and the NYPD imposed command discipline B and three vacation days.
- Sgt. Singh has been a member of service for 10 years and has been a subject in six additional CCRB complaints and 27 allegations, of which eight were substantiated:
 - 201805295 involved substantiated allegations of Discourtesy – Word against Sgt. Singh. The Board recommended Formalized Training and the NYPD imposed No Penalty.
 - 202003525 involved substantiated allegations of Force (Physical force) and Abuse of Authority (Failure to provide RTKA card, Frisk, Refusal to provide shield number, Search of person, Threat of force (verbal or physical)) against Sgt. Singh. The Board recommended Charges which were not served given APU closure. § 87(2)(g)
[REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of May 14, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident [Board Review 26].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 11

Investigator: Christian Jett
Signature

Inv. Christian Jett
Print Title & Name

04/16/2025
Date

Squad Leader:	Edwin Pena	IM Edwin Pena	04/16/2025
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date